THE UNIVERSITY OF HONG KONG

FACULTY OF ENGINEERING
SCHOOL OF COMPUTING AND DATA SCIENCE

COMP7901 Legal Protection of Digital Property

(NOT FOR CIRCULATION)

Date: 13 May 2025 Time: 6:30 pm – 8:30 pm

You may bring into the examination room NO MORE THAN 6 SHEETS of A4 size paper containing your own notes. **Any set of notes exceeding 6 sheets will be removed in its entirety.**

Answer ALL questions. You should write SHORT AND SUCCINCT answers to each question in the space provided on the examination paper. If additional answer sheets are used, attach them to the examination paper for them to be marked.

Unless otherwise stated, all persons, websites or companies referred to in the questions are domiciled, situated or incorporated in HONG KONG.

THIS PAPER HAS A TOTAL OF 90 MARKS.

Write your University Number below and at the upper right-hand corner of every odd - numbered page starting from P.3.

UNIVERSITY NUMBER: _____

	MARKS
QUESTION 1	
QUESTION 2	
QUESTION 3	
TOTAL	

For each question below, if you need to make assumptions about the facts, make the MOST REASONABLE and the MINIMAL number of assumptions, and state clearly what they are.

QUESTION 1. (30 Marks)

Zhang is a Professor of Chinese Literature at Wanchai University and holder of a master's degree in computer science. In the past 3 years, he has devoted himself to developing a new generative AI program called DikDok for writing Chinese poems. The program is based on a new algorithm **("the Algorithm")** that applies fuzzy logic to the unique linguistic features of the Chinese language, and is trained using a large and diverse dataset. Anyone, by supplying the necessary parameters to DikDok (specifying the theme, style, length, etc), can use DikDok to instantly produce an elegant Chinese poem that meets the person's requirements.

Both DikDok and the Algorithm are devised solely by Zhang. Zhang's employment contract with Wanchai University states that his main duties are teaching and conducting research in Chinese Literature.

(a) Zhang has just filed a standard patent application **("the Application")** in Hong Kong for a process claim for the Algorithm. Would this claim be excluded from patentability under the Patents Ordinance? Explain. (10 Marks)

(b) Regardless of your answer to (a) above, if the Application is successful and a standard patent is granted, who is entitled to the standard patent? Explain. (10 Marks)

(c) Prior to submitting the Application, Zhang has demonstrated DikDok at various universities in Hong Kong and gained wide recognition for the work he has done. Would these demonstrations affect the Application, and if so, how? Explain. (10 Marks)

QUESTION 2. (30 Marks)

Jacky, IT manager of HongKong Insurance **(HKI)**, has led his IT team to develop a new accounting software for the company. During the design stage of the software, Jacky had regularly met with his IT team to come up with a design document **("the Document")** for the software. While the Document was written entirely by Jacky, all of the diagrams contained therein were contributed by his IT team. It was understood that the Document and its content were to be kept confidential and not disclosed to anyone outside HKI.

After the new software was developed and installed, Jacky left HKI to join KowLoon Insurance **(KLI)** as the Head of IT and took with him a copy of the Document. Jacky's first project at KLI was to revamp the company's accounting software. To kick-start the project, he made copies of certain important passages and diagrams from the Document and gave them to the IT team at KLI, telling the team that the copies contained his original ideas which the team was free to build on to design the new software. A few weeks later, the team came up with a specification for the new software containing all the passages and diagrams received from Jacky.

(a) Identify ALL relevant copyright works in the facts above. For each copyright work so identified, name the author(s) and copyright owner(s). Explain. (10 Marks)

(b) Does Jacky have any civil liabilities (and if so, who can sue) under the Copyright Ordinance of Hong Kong? What about criminal liabilities? Explain. (20 Marks)

QUESTION 3. (30 Marks)

PokFulam Bank **(PFB)** is a bank in Hong Kong with over 1 million customers. It has a large database containing, among other things, the contact and financial information of its customers. A month ago, the database was accessed by an unknown hacker who had copied all of its contents **("the Incident")**. The Incident was reported to the police but the hacker has not been found. Meanwhile, PFB's customers began to receive advertising emails addressed to them personally from SaiWan Bank **(SWB)**, inviting them to switch to SWB in view of the Incident. A significant number of PFB's customers have since switched to SWB.

Through a private investigator, PFB has found that shortly after the Incident, SWB has purchased from MegaData Centre **(MDC)** the contact information of PFB's customers **("the Information")**, on condition that SWB will keep the Information confidential as it belongs to PFB. A staff member of MDC has secretly told the private investigator that the Information is authentic, as it was obtained by an employee of MDC directly from PFB's database.

(a) Has SWB contravened the Personal Data (Privacy) Ordinance? Explain. (14 Marks)

(b) Has MDC contravened the Personal Data (Privacy) Ordinance? Explain. (16 Marks)

*** END OF PAPER ***